

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
JAIRO Y. ESPINAL ORTIZ,

SUMMONS

Plaintiff,

-against-

Plaintiff resides at:
3052 La Salle Avenue
Apartment: 2
Bronx, NY 10461

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
STEVEN J. MARKSBERRY, SHIELD #21934, and
NEW YORK CITY TAXI AND LIMOUSINE
COMMISSION,

Defendants.

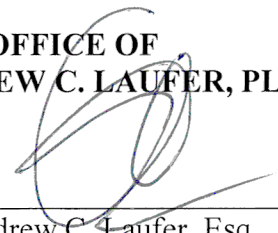
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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates the basis of the venue for trial as Bronx County.

Dated: New York, New York
May 10, 2024

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
JAIRO Y. ESPINAL ORTIZ
264 W 40th Street, Suite 604
New York, New York 10018
(212) 422-1020

DEFENDANT'S ADDRESSES

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER STEVEN J. MARKSBERRY, SHIELD #21934
3016 Webster Avenue
Bronx, New York 10467

NEW YORK CITY TAXI
AND LIMOUSINE COMMISSION
33 Beaver Street, 22nd Floor
New York, New York 10004

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
JAIRO Y. ESPINAL ORTIZ,

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
STEVEN J. MARKSBERRY, SHIELD #21934, and
NEW YORK CITY TAXI AND LIMOUSINE
COMMISSION,

Defendants.

-----X
Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the plaintiff was a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned defendant, POLICE OFFICER STEVEN J. MARKSBERRY, SHIELD #21934, was and still is employed with the New York City Police Department.

5. That at all times herein mentioned, POLICE OFFICER STEVEN J. MARKSBERRY, SHIELD #21934, was acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

6. That at all times herein mentioned, POLICE OFFICER STEVEN J. MARKSBERRY, SHIELD #21934, was acting in their individual and official capacity as an employee of defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

7. That at all times hereinafter mentioned defendant, NEW YORK CITY TAXI AND LIMOUSINE COMMISSION (“TLC”), is an administrative agency of the City, created by New York City Charter § 2300 for the continuance, further development, and improvement of taxi and limousine service in the City of New York.

8. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York’s Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

9. On or about August 15, 2022 at approximately 4:00 a.m., the plaintiff, JAIRO Y. ESPINAL ORTIZ, was driving on the corner of East 198th Street and Webster Avenue, when he was pulled over by defendant, POLICE OFFICER STEVEN J. MARKSBERRY, SHIELD #21934, for a traffic infraction and was asked to take a breathalyzer test. When plaintiff refused, he was arrested. The plaintiff was then maliciously prosecuted by and at the direction of the said individuals as well as other agents, servants and/or employees of the City of New York, including but not limited to, agents employed by the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT. The charges against plaintiff were dismissed 10 months later on June 26, 2023.

10. Due to his false arrest, defendants, NEW YORK CITY TAXI AND LIMOUSINE COMMISSION (“TLC”), immediately suspended his license and was unable to work for over a year. His suspension wasn’t lifted until October 25, 2023.

11. The Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICER STEVEN J. MARKSBERRY, SHIELD #21934, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of his rights, privileges and immunities secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false and over charges against them by police; (e) freedom from abuse of process and malicious prosecution; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

12. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York’s Civil Practice Law and Rules 1602 with respect to joint liability.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF’S CONSTITUTION RIGHTS UNDER THE FIRST, FOURTH, FIFTH, SIXTH, EIGHTH, FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION, CITY OF NEW YORK AND NEW YORK STATE LAW PREDICATED UPON FALSE ARREST AND IMPRISONMENT

13. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

14. On or about August 15, 2022 at approximately 4:00 a.m., the plaintiff, JAIRO Y. ESPINAL ORTIZ, was driving on the corner of East 198th Street and Webster Avenue, when he was pulled over by defendant, POLICE OFFICER STEVEN J. MARKSBERRY, SHIELD #21934, for a traffic infraction and was asked to take a breathalyzer test. When plaintiff refused, he was arrested. The plaintiff was then maliciously prosecuted by and at the direction of the said individuals as well as other agents, servants and/or employees of the City of New York, including but not limited to, agents employed by the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT. The plaintiff was wrongfully and falsely arrested, imprisoned and detained without any right or justifiable grounds thereof.

15. That on or about August 15, 2022 defendants, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrest plaintiff, restrain him and his liberty.

16. The unlawful conduct of defendants was motivated and instigated by other than lawful reasons and without probable cause.

17. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the defendant police officers, without a warrant and without any reasonable cause or belief that plaintiff was in fact guilty of any crime.

18. That the CITY, its agents, servants and employees, as set forth above, intended to confine plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

19. As a result of the aforesaid actions, including the arrest and imprisonment of plaintiff without probable cause, defendants deprived plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth

Amendment.

20. As a result of the aforementioned actions, defendants deprived plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth, Fourteenth Amendments.

21. As a result of the forementioned actions, defendants deprived plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fourth, Fourteenth Amendments.

22. The aforementioned acts of defendants were intentional, willful and malicious and performed with a reckless disregard for said deliberate indifference to plaintiff's rights.

23. That by reason of the false arrest, imprisonment and detention of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

24. The aforementioned described constitutional violations are all actionable under and pursuant to 42 U.S.C. Section 1983 and 1988.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS PURSUANT TO 42 U.S.C § 1983 FOR DENIAL OF RIGHT TO A FAIR TRIAL

25. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

26. That the aforementioned actions of the Defendants constitute a denial of Plaintiff's right to a fair trial, in violation of Plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle Plaintiff to recover monetary damages under 42 U.S.C. 1983.

27. The aforementioned constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1983 and 1988.

**THIRD CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER
THE FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED
STATES CONSTITUTION, NEW YORK CITY AND NEW YORK STATE LAW
PREDICATED UPON MALICIOUS PROSECUTION OF PLAINTIFF**

28. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

29. Upon information and belief, on or about August 15, 2022, defendants deliberately and maliciously prosecuted plaintiff, an innocent man, without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, County of Bronx for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York. Charges against plaintiff were dismissed 10 months later on June 26, 2023.

30. The commencement of these criminal proceedings was malicious and began with malice and without probable cause so that the proceeding could succeed by the defendants.

31. As a result of the aforementioned actions, including the initiation of the criminal prosecution of plaintiff without probable cause, defendants deprived plaintiff of the right, privileges and immunities secured by the Constitution and laws of the United States of America and the Fourteenth Amendment.

32. As a result of the aforementioned actions, defendants deprived plaintiff of the right to be free from unreasonable search and seizure secured by the Constitution and Laws of the United State and Fourth ad Fourteenth Amendments.

33. As a result of the forementioned actions defendants deprived plaintiff of the right to liberty without due process of law secured by the Constitution and Laws of the United States of America and Fifth and Fourteenth Amendments.

34. The aforementioned acts of defendants were intention, willful and malicious and performed with reckless disregard for and deliberate indifference of plaintiff's rights.

35. The aforementioned constitutional violations are all actionable under and pursuant to 42 USC Sections 1983 and 1988.

FOURTH CAUSE OF ACTION FOR NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION

36. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

37. That the aforesaid action and resulting injuries to plaintiff were due to the negligence of the CITY in the hiring, retention and training of its employees, including POLICE OFFICER STEVEN J. MARKSBERRY, SHIELD #21934 causing the plaintiff to be falsely arrested and imprisoned without justifiable reason or ground thereof and in all ways being grossly negligent and engaging in wanton and reckless conduct.

FIFTH CAUSE OF ACTION – MONELL VIOLATIONS

38. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

39. That plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and the State of New York, and his rights pursuant to 42 USC sec. 1983 by those who under color of a statute or regulation of a state, caused plaintiff to be so deprived.

40. That the aforesaid actions by the defendants, their agents, servants and/or employees were done pursuant to an official municipal policy or custom of the city, which policy involved the deliberate indifference to the health, safety, and welfare of the plaintiff, in failing to properly discipline the defendants and for the purpose of thwarting the fair administration of justice in violation of the 4th and 5th Amendments to the United States Constitution.

41. The above actions of defendants resulted in the plaintiff being deprived of the following rights under the United States Constitution.

- a) Freedom from illegal search and seizure;
- b) Freedom from arrest;
- c) Freedom from malicious prosecution;
- d) Freedom from unlawful imprisonment;
- e) Freedom from the denial of a right to fair trial

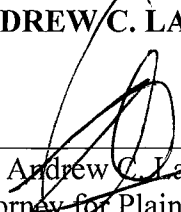
42. The defendants subjected plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights.

43. Those defendants herein, their agents, servants and/or employees motivated in part by racial and/or ethnic animus, conspired to deprive plaintiff of his federal civil and constitution rights, in violation of 42 USC 1985.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for plaintiff's pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees and together with costs and disbursements.

DATED: New York, New York
May 10, 2024

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.
Attorney for Plaintiff

JAIRO Y. ESPINAL ORTIZ
264 W 40th Street, Suite 604
New York, New York 10018
(212) 422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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JAIRO Y. ESPINAL ORTIZ,

VERIFICATION

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
STEVEN J. MARKSBERRY, SHIELD #21934, and
NEW YORK CITY TAXI AND LIMOUSINE
COMMISSION,

Defendants.

-----X
ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New
York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.

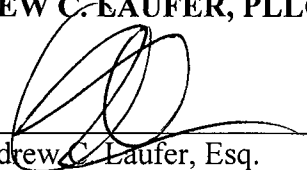
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.

3. That the reason this verification is made by the affirmant and not by the plaintiff is that the plaintiff does not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
May 10, 2024

[signature on following page]

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**

A handwritten signature in black ink, appearing to read 'Andrew C. Laufer', is written over a horizontal line.

By: Andrew C. Laufer, Esq.
Attorney for Plaintiff
JAIRO Y. ESPINAL ORTIZ
264 W 40th Street, Suite 604
New York, New York 10018
(212) 422-1020